

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robert Bryan	Team: Squad #13	CCRB Case #: 202004402	☐ Force	☐ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 06/04/2020 7:45 PM, Thursday, 06/04/2020 11:30 PM	Location of Incident: East 136th Street and Brook Avenue; Outside Queens Criminal Court	18 Mo. SOL 5/4/2022	Precinct: 40		
Date/Time CV Reported Thu, 06/18/2020 12:44 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 06/18/2020 12:44 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Danny Romero	06431	957101	SRG 2
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. COD Terence Monahan	00000	876747	CD OFF
2. POM Harry Kerr	22551	962522	SRG 2
3. AC Kenneth Lehr	00000	891719	PBBX
4. POM Derek Bruno	16445	952504	SRG 2
5. POM Manuel Bordoy	00323	948686	SRG 2

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: At East 136th Street and Brook Avenue in the Bronx, officers did not obtain medical treatment for an individual.	
B . Officers	Abuse: Outside of Queens Criminal Court, officers threatened to arrest § 87(2)(b)	
C . POM Danny Romero	Untruthful Stmt.: Police Officer Danny Romero provided a false official statement to the CCRB.	
§ 87(2)(g), § 87(4-b)		

Case Summary

This case involves allegations of kettling and other concerted enforcement actions performed under the command and supervision of the then Chief of Department Terrance Monahan and Assistant Chief Kenneth Lehr. These allegations are being addressed in case 202006855.

On June 18, 2020, § 87(2)(b) filed this complaint via the CCRB's website on behalf of herself and unidentified individuals.

On June 4, 2020, § 87(2)(b) attended a Black Lives Matter protest in Mott Haven in the Bronx. In the vicinity of East 136th Street and Brook Avenue, § 87(2)(b) witnessed, during the course of kettling the crowd of protesters, an unidentified officer lying on top of an unidentified man's back, an unidentified officer rush towards § 87(2)(b) with his baton in his hand, and unidentified officers throwing unidentified protesters to the ground. § 87(2)(b) was taken into custody by Police Officer Danny Romero of Strategic Response Group 2 and escorted to a waiting area before being transported from the protest. While waiting, she witnessed unidentified officers allegedly refuse to provide medical attention to an unidentified protester who had been pepper sprayed (**Allegation A – Abuse of Authority**; § 87(2)(g) § 87(2)(b) was transported to Queens Criminal Court, where unidentified officers threatened to arrest her (**Allegation B – Abuse of Authority**; § 87(2)(g) § 87(2)(b). The investigation determined that PO Romero provided a false official statement to the CCRB (**Allegation C – Untruthful Statement**;

§ 87(2)(g) § 87(2)(g), § 87(4-b)

§ 87(2)(b) received a summons for violating the Mayor's curfew (**Board Review 01**). § 87(2)(b)

However, a Gothamist article published on September 1, 2020, revealed that all curfew-related violations were eventually dismissed (**Board Review 03**).

BWC footage from 90 officers who were present at this protest, including PO Romero, was received from NYPD Legal (**Board Review 04**). None of the footage definitively captured any of the FADOs alleged in this case, and PO Romero's BWC footage only captured the parts of the incident that took place in the Bronx. The footage is in IAs # 29-53, 134-142, and 245-379 (**Board Review 05-172**) and summarized in IAs # 60, 64, 67, 70, 74, 76, 79, 81, 85, 87, 89, 90, 92-95, 97, 99, 101-106, 109, 145-152, 156, and 439 (**Board Review 172-189, 191-207**). Requests for BWC footage for the part of the incident that took place outside of the Queens Criminal Courthouse yielded no relevant videos (**Board Review 226**).

Findings and Recommendations

Allegation (A) Abuse of Authority: At East 136th Street and Brook Avenue in the Bronx, officers did not obtain medical treatment for an individual.

§ 87(2)(b) stated that while she stood on East 136th Street between Brook Avenue and Brown Place along with other ziptied protesters, one protester standing next to her, a young (less than 20-years-old) black man with short hair (close to a shaved head), who was dressed in a white t-shirt, was crying in pain because his eyes were swollen shut and he was having trouble breathing. He asked the officers to wipe his face, but the officers did not help him.

In PO Romero's BWC footage (**Board Review 05**), at the 14:00 minute mark of the media player timestamp (visible at the bottom of the screen), as PO Romero holds onto § 87(2)(b) who is ziptied, a voice can be heard offscreen yelling, "My eyes! I need medical attention!" At 14:10, the male protester provides his name to a legal observer, but the name is inaudible. At 14:13, as he appears on the right side of the screen, the male protester spells his name, which sounds like

§ 87(2)(b) The male protester is black, young, and wearing a light gray t-shirt. Like § 87(2)(b) and the other protesters standing in her immediate vicinity at this point, the male protester is rear ziptied. At 15:12, a white or Hispanic uniformed male officer speaks to him, though his words are inaudible and the shield number on his helmet is not visible. At 15:50, the male protester says, "Sir, can you go in my side pocket? There's tissues. Please sir." At 16:00, the officer takes a tissue from the side pocket of the male protester's backpack and wipes off his face. The male protester says to him, "If every officer were like you, there wouldn't be a problem, sir. We're having a peaceful protest, sir." At 16:50, the officer escorts the male protester toward Brook Avenue.

In the BWC footage of Police Officer Harry Kerr of SRG 2, at the 05:00 minute-mark of the media player timestamp (visible at the bottom of the screen), which corresponds to 8:06 p.m. according to the embedded timecode, PO Kerr approaches an officer whose face and shield number are not visible (**Board Review 06**). This officer is holding onto the arm of the ziptied young black male protester with a light gray t-shirt and says to PO Kerr, "He got maced and he's having a hard time walking, but other than that, he's been a gentleman." It is unclear whether this officer is the same officer seen wiping the male protester's face with a tissue in PO Romero's BWC footage. PO Kerr says, "Alright I'll take care of you," and escorts the male protester to the intersection of East 136th Street and Brook Avenue. The male protester says, "Please can I get some water or something for my eyes." PO Kerr tells him to give him a second. At 05:45, the male protester sits in the intersection with other ziptied protesters, one of whom says, "I've got water in my bag. Put it on his eyes, please." At 05:52, PO Kerr appears to take a bottle of water from that protester's bag and, at 06:05, he pours water from the bottle into the male protester's eyes before walking away. He leaves the protestor seated and rear handcuffed with the other protesters, and this protestor is not seen again in any BWC footage.

There is no record of anyone with a first or last name similar to § 87(2)(b) being arrested or summonsed at this protest (**Board Review 220-224**), and without more information, such as a second name, date of birth, and/or arrest or summons number, the investigation was unable to utilize agency resources to identify the victim of this allegation or to request additional NYPD documents that may have aided in identifying him.

§ 87(2)(g) The video evidence confirms that an unidentified officer wiped the male protester's face with a tissue at his request, and that PO Kerr poured water into the male protester's eyes. § 87(2)(g)

Allegation (B) Abuse of Authority: Outside of Queens Criminal Court, officers threatened to arrest § 87(2)(b)

Known facts and general descriptions:

From the protest in Mott Haven, § 87(2)(b) was placed inside a van, where she remained for about an hour. The van left at 9:15 p.m. and drove to a building in Kew Gardens, Queens, though § 87(2)(b) did not know where specifically she was taken. She was released with a criminal summons at about 11:30 p.m. Outside the courthouse building, a line of about four officers stood along the building's sloping driveway which appeared to lead to a garage. § 87(2)(b) did not recognize these officers from the protest in the Bronx. A uniformed white male officer wearing a white shirt pointed at § 87(2)(b) and said, "If I see you out there, I'm going to have to arrest

you again. I don't want to have to arrest you and put you right back in here." The other three officers, two uniformed men and one uniformed woman, all interjected with their own remarks to § 87(2)(b) including, "Don't just hang around over there. If you hang out over there, we're going to have to arrest you again," "I don't want to arrest you again tonight. Don't make me arrest you again tonight," and "Watch out, it's after curfew. I don't want to see you get arrested on your way home." PO Romero walked § 87(2)(b) out of the building and to the sidewalk and she had no further interactions with the officers. § 87(2)(b) could not describe any of these officers further.

Video Evidence:

PO Romero's BWC footage does not capture this portion of the incident. The request for any BWC footage from outside of or near the Queens Criminal Courthouse was returned negative (**Board Review 226**), and these results were confirmed by Allison Arenson at NYPD Legal. The search criteria that NYPD Legal utilized to search for BWC footage was the following: between 8:00 p.m. on June 4, 2020 to 12:01 a.m. on June 5, 2020 from commands 102, 460, 172, 425, 554, 528, 535, 574, 625, 401, 541, 543, 413, and 415, as well as the numbers of two unrelated summonses. Without names or shield numbers, no additional BWC requests could be generated for specific officers.

A request for video surveillance footage from the Queens Criminal Courthouse was returned negative with a notation that their system only saves footage for 10 days (**Board Review 219**).

NYPD Documents Reviewed:

§ 87(2)(b) received a summons for violating the 8:00 p.m. curfew (**Board Review 01**).

PO Romero's memo book states that he was present for duty on June 4, 2020, issued the summons to § 87(2)(b) at 9:00 a.m., and ended his tour at 2:00 a.m. on June 5, 2020. It does not contain any additional information about this aspect of the incident (**Board Review 212**).

§ 87(2)(b) name does not appear on the SRG Mass Arrest Sheet from Queens Central Booking (**Board Review 221**).

High Ranking Officers Interviewed:

Chief of Department Terrence Monahan and Assistant Chief Kenneth Lehr of Patrol Borough Bronx were interviewed as the highest-ranking officers known to be on scene at the Mott Haven Protest, but neither acknowledged being present at the Queens Criminal Courthouse on the incident date.

Other Officers Interviewed

PO Romero said he did not accompany § 87(2)(b) on the van to Queens Central Booking but went there in a different van full of officers (**Board Review 215**). He issued § 87(2)(b) a summons in lieu of arrest for violating the Mayor's curfew, and when she was released, she asked PO Romero for directions to the subway and he provided them. He did not see any officers interact with § 87(2)(b) or threaten to arrest her outside of the courthouse. PO Romero's BWC did not capture the portion of the incident at Queens Central Booking, and he did not provide a reason for why his BWC was off at this time.

Allegation Recitation and Disposition:

§ 87(2)(g)

Allegation (F) Untruthful Statement: Police Officer Danny Romero provided a false official statement to the CCRB.

At the beginning of PO Romero's BWC video (**Board Review 05**), as he stands with other officers facing the kettled protesters, his BWC appears to be functioning properly. At the 01:16 minute-mark of the media player timestamp (visible at the bottom of the screen), the BWC suddenly becomes obscured and remains so for the rest of the video. Before this moment, PO Romero's camera appears to be properly affixed, but his hand partially covers the lens as if he is trying to adjust or remove the camera. At 06:44, protesters start screaming and the little that can be seen in PO Romero's obscured video shows him and other officers beginning to arrest protesters. While protesters are heard screaming and coughing as they are arrested and pepper sprayed, PO Romero's BWC is almost entirely obscured, and his arrest of § 87(2)(b) cannot be seen. At 11:33, once § 87(2)(b) is ziptied, the footage briefly returns to normal, before being partially obscured again to varying degrees for the remainder of the video. At no point before PO Romero's camera becomes obscured, is he captured being pushed into the crowd of protesters, who are too far away to make physical contact with him, and the only people standing behind him during that period are his fellow NYPD officers. No additional BWC videos were received from PO Romero's BWC.

In the BWC video of Police Officer Derek Bruno of SRG 2, at the 00:07 minute-mark of the media player timestamp (visible at the bottom of the screen), PO Romero is seen for several seconds amongst the group of officers preparing to arrest protesters (**Board Review 07**). There are no protesters in the vicinity of the officers, and PO Romero's BWC appears to be turned off because its red light is not on. From 00:07 to 01:47, several dozen SRG officers, including PO Bruno and PO Romero, walk down East 136th Street from Brown Place to Brook Avenue, where they come to a stop in front of the line of protesters. At 00:45, PO Romero is again visible for several seconds at the corner of Brown Place and East 136th Street as he looks over his right shoulder behind him. At no point in this part of PO Bruno's BWC do protesters approach or engage with the officers. The BWC footage received from Police Officer Manuel Bordoy of SRG 2, which also shows this part of the incident from 00:00 to 02:35, does not show anyone pushing PO Romero or any protesters interacting with PO Romero before the arrests begin, and it does not depict any physical contact between officers and protesters prior to the arrests (**Board Review 10**).

During his CCRB interview on September 23, 2020, PO Romero said his BWC was obscured during his interactions with § 87(2)(b) because protesters pushed him from behind and his BWC fell to the ground. He tried clipping it back onto his uniform but could not because "everything was so hectic" that he was forced to put it in his front shirt pocket instead. When shown a clip from his BWC footage, from 01:05 to 01:20, and asked if that was the moment when his BWC fell and/or the moment when he put it back in his pocket, PO Romero said, "I remember getting pushed into the crowd and then it fell. Maybe if you continue playing it, we could see." PO Romero was shown another clip, from 01:20-01:38, and asked if this clip refreshed his memory. He stated, "My answer is still the same. I got pushed into a crowd, it dropped, and then I tried clipping it back on and it wouldn't, so I put it in my pocket to secure it." He did not think this clip captured that moment. When asked why this clip showed the moment the BWC became obscured, he replied, "Is there a second video to this? I'm trying to figure out. When it fell down, is it possible that it turned off and made two separate videos?" He could not offer any further explanation for this discrepancy but said the clip did not capture the moment he was pushed.

NYPD Patrol Guide, Procedure 203-08 prohibits officers from making false official statements

during CCRB interviews (**Board Review 216**). The Patrol Guide defines a false official statement as one “that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made.”

PO Romero stated that his BWC became obscured after a protester pushed into him, which knocked the camera to the ground. However, contrary to his testimony, at the time his BWC became obscured, PO Romero was standing amongst a group of officers, and the group of protesters was entirely in front of him, separated by a substantial distance. The parts of the incident involving the most uses of force by officers against protesters (which are being addressed in case 202006855), coincide with the period in which PO Romero’s camera is almost completely obscured, and the footage becomes noticeably less obscured after § 87(2)(b) is ziptied. When shown footage from his own BWC that contradicted his initial testimony, PO Romero was unable to provide an explanation for how protesters could have pushed him from behind when the protesters were all in front of him, nor could he explain when or where the alleged push occurred, what the protesters who pushed him looked like, how many of them pushed him, or any other details about the push.

Rather than amend his testimony when presented with evidence contradicting his earlier statement, PO Romero speculated that there might be a second video showing what he described. However, no second video from PO Romero was received in response to numerous requests from NYPD Legal. PO Romero’s reason for placing his BWC in his pocket, that because “everything was so hectic” he was unable to reaffix it to his uniform, was contradicted by what is audible and the little that can be seen on his BWC footage, which shows that for approximately five minutes and 28 seconds, PO Romero stood still while surrounded by his fellow officers and did not engage with protesters. Though things would become “hectic” soon after, when the arrests began, this period of relative calm provided ample opportunity for PO Romero to reaffix his BWC. Instead, it appears from his BWC footage that PO Romero removed his BWC, which had been properly affixed at the beginning of the video, and placed it in his front pocket to obscure the camera’s lens with the fabric of his uniform.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (**Board Review 218**).
- PO Romero has been a member of service for six years and this is the first case in which he has been named as a subject.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- As of December 28, 2020, the NYC Comptroller's Office had no record of a Notice of Claim being filed by § 87(2)(b) regarding this incident (**Board Review 219**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad 13

Investigator: Robert Bryan Inv. Bryan 6/14/2021
Signature Print Title & Name Date

Squad Leader: Laura Kastner IM Laura Kastner 06/14/2021
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____